

oppression or malice.

As to Ghilarducci, it is alleged she witnessed the fight and did nothing to stop it except blow her whistle. (FAC ¶135.) These facts are insufficient to rise to the level of fraud, oppression or malice. Further, there is no cause of action alleged against Ghilarducci.

Therefore, the motion to strike punitive damages is granted. Plaintiff is given leave to amend to include facts showing fraud, oppression or malice.

8. 9:00 AM CASE NUMBER: C24-03092
CASE NAME: PETER SCHICKER VS. JOSEPH SCHWALLER
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: SCHWALLER, JOSEPH WILBUR
TENTATIVE RULING:

Off-calendar based on notice of settlement on February 18, 2026.
Court will maintain the April 9, 2026 CMC at 8:30 a.m., Dept 32. If no dismissal is on file as of that date, parties must file updated CMC Statements 15 days in advance of April 9, to inform the court about the status of the settlement.

9. 9:00 AM CASE NUMBER: C24-03122
CASE NAME: RICHARD DAVIS VS. SCOTT EVEY
***HEARING ON MOTION IN RE: TRIAL PREFERENCE**
FILED BY: DAVIS, RICHARD PAUL
TENTATIVE RULING:

This suit, filed in November of 2024, involves a motor vehicle accident on October 10, 2024. Pending now before the Court is plaintiff, Richard Paul Davis' motion for trial preference. Plaintiff seeks a preferential trial date no later than 120 days from the hearing of this motion.

Code of Civil Procedure, § 36(a) states that the court "shall grant" trial preference to a party over the age of 70 if (1) that party "has a substantial interest in the action as a whole," and (2) the health of that party is such that a preference is necessary to prevent prejudicing his or her interest in the litigation.

Plaintiff argues that he is 82 years old and has diagnoses including a kidney disorder, esophageal reflux, hypertension, dyslipidemia, intrinsic asthma, low testosterone, dyspnea on exertion, a family history of heart disease, hypertension, bifascicular bundle branch block, kidney disease, gout, secondary hyperparathyroidism, and a depressive disorder. In support of the motion, plaintiff provides a declaration from counsel, H. Nathan James, Esq. Counsel states that surgery was initially scheduled for October 2025, but plaintiff "is unable to endure the surgery and the six months of rehabilitation thereafter, as he cannot afford to stop working for six months" without resolution of this matter. Counsel further states that plaintiff relies upon the income from his business and is being forced to continue working notwithstanding the pain and suffering resulting from such exertion.

Defendant opposes the motion based on the showing not evidencing any prejudice to plaintiff's "interest in the litigation" as opposed to general hardship incurred by any plaintiff in

litigating a personal injury claim.

Plaintiff's reply brief argues he is "in somewhat frail health and in dire need of a complete, left shoulder replacement surgery." While also arguing that plaintiff's "remaining years are limited," the Court notes the absence of any assertion that conditions plaintiff is suffering from are fatal. Further, while the reply points out that a deceased plaintiff's estate cannot recover pain and suffering damages, the prejudiced interest in such circumstances would be the estate and not the plaintiff himself.

Here, the Court finds plaintiff to be over the age of 70, permitting the present motion. Plaintiff is further the only plaintiff named here, giving him a substantial interest in the present action as a whole. As to the final showing, however, the Court finds that there is insufficient evidence to conclude preference is necessary to prevent prejudicing plaintiff's interest in the litigation. However, the Court is sympathetic to plaintiff's allegations and diagnoses, acknowledging some uncertainty as to years remaining, and noting that this case has already been pending for over a year.

Accordingly, the Court **denies** the motion for trial preference, but intends to set a trial as soon as practicable for all involved. The Case Management Conference currently set for June 3rd is advanced to March 3, 2026 at 8:30 am for the purposes of setting a mediation or other ADR compliance deadline, Issue Conference, and trial date.

Parties are ordered to file and serve updated CMC Statements by noon on February 26, 2026. Parties are ordered to list all discovery planned, propounded, scheduled or completed thus far in their CMC Statements. Parties are ordered to list any pre-trial motions concerning discovery or the pleadings (excluding motions *in limine*). If parties have not completed ADR, parties are to meet and confer on selection of a mediator prior to March 3, 2026.

10. 9:00 AM CASE NUMBER: C25-00200

CASE NAME: CLAUDIU MIHAILA VS. DOES 1-25

***HEARING ON MOTION IN RE: TO CONTEST APPLICATION FOR DETERMINATION OF GOOD FAITH SETTLEMENT**

FILED BY: DISCOVERY BUILDERS, INC.

TENTATIVE RULING:

Defendant Discovery Builders California Inc. ("Builder") has filed a motion ("Motion") to contest an application for good faith settlement determination ("Application") filed by codefendants Dennis Czarnecki and Maureen Czarnecki ("Sellers"). Plaintiffs Claudiu Mihaila and Gabriela Mihaila ("Plaintiffs") allege that Builder negligently constructed the home they own and did so in violation of residential construction standards and that Sellers made negligent misrepresentations and negligent nondisclosures during the course of selling the home at issue to Plaintiffs.

For the reasons set forth below, Builder's Motion is **denied**. Pursuant to Code of Civil Procedure §§ 877 and 877.6, the Court finds that Builder has not met its burden on the Motion. The Court also finds that the settlement between Sellers and Plaintiffs is a good faith settlement under the standards of *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, as set forth below.

Background